

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Harold Rodriguez	Team: Squad #03	CCRB Case #: 201504289	☐ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 05/10/2015 12:15 AM	Location of Incident: Sutter Avenue and Eldert Lane	18 Mo. SOL 11/10/2016	Precinct: 75
Date/Time CV Reported Tue, 05/26/2015 6:17 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Tue, 05/26/2015 6:18 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Cleeford Franklin	04885	953880	075 PCT
2. LT Michael Mckenzie	00000	917975	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . POM Cleeford Franklin	Abuse: PO Cleeford Franklin drew his gun.	A . Unsubstantiated
B . LT Michael Mckenzie	Abuse: Lt. Michael Mckenzie refused to provide his name and/or shield number to § 87(2)(b)	B . Unsubstantiated
C . POM Cleeford Franklin	Abuse: PO Cleeford Franklin searched § 87(2)(b)	C . Unsubstantiated

Case Summary

On May 10, 2015, at approximately 12:15 a.m., § 87(2)(b) was pulled over by PO Cleeford Franklin and Lieutenant Michael McKenzie of Patrol Borough Brooklyn North at the corner of Eldert Lane and Sutter Avenue in Brooklyn for talking on his cellphone. PO Franklin allegedly approached § 87(2)(b)'s vehicle with his gun drawn (**Allegation A**). He asked § 87(2)(b) for his license and he ignored the request, so PO Franklin pulled him out of the car and placed him in handcuffs. § 87(2)(b) asked Lt. McKenzie for his name and Lt. McKenzie allegedly replied, "I have nothing to do with this" (**Allegation B**). PO Franklin then allegedly removed § 87(2)(b)'s cellphone and identification from his back pants pockets (**Allegation C**) and issued him two summonses for § 87(2)(b) (BR 01).

Mediation, Civil and Criminal Conviction Histories

- § 87(2)(b)'s case was ineligible for mediation § 87(2)(b).
- As of June 9, 2015, § 87(2)(b) had not filed a Notice of Claim with the City of New York.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) has case number § 87(2)(b).
- PO Franklin has been a member of service for two years and has no substantiated allegations against him. This is the first CCRB complaint against him.
- Lt. McKenzie has been a member of service for 19 years and has no substantiated allegations against him. This is the first CCRB complaint against him.

Potential Issues

- § 87(2)(b) PO Franklin and Lt. McKenzie were consistent that there was an unidentified male who stated he was going to record the incident. The undersigned investigator conducted fieldwork on June 25, 2015 and posted letters in the main lobby and elevator bank of the building. There was no response to any of the letters.

Findings and Recommendations

Allegations Not Pleaded

- § 87(2)(g)
[REDACTED]
- § 87(2)(g)
[REDACTED]

§ 87(2)(g)

Allegation A – Abuse of Authority: PO Cleeford Franklin drew his gun.

Allegation B – Abuse of Authority: Lt. Michael McKenzie refused to provide his name and/or shield number to § 87(2)(b)

Allegation C – Abuse of Authority: PO Cleeford Franklin searched § 87(2)(b)

§ 87(2)(b) alleged that once he was pulled over for allegedly talking on his cellphone, PO Franklin drew his gun and held it at his side as he approached his vehicle. PO Franklin then asked § 87(2)(b) for his license and registration but § 87(2)(b) was afraid to take his hands off the steering wheel to get the documents from his pocket and glove compartment. He therefore, ignored PO Franklin's request for the documents. He alleged that PO Franklin then asked him to step out of the vehicle, but before he could reply, PO Franklin opened the driver's side door and pulled § 87(2)(b) out by the arm. PO Franklin then placed him against the vehicle and handcuffed him. § 87(2)(b) turned to Lt. McKenzie and asked him for his name and Lt. McKenzie replied, "I have nothing to do with this." PO Franklin then took § 87(2)(b)'s cellphone and wallet with identification from his back pants pockets. § 87(2)(b) was issued a summons for § 87(2)(b). § 87(2)(b) admitted that he was irate and screaming but did not recall if he was using profanities.

According to PO Franklin, he saw § 87(2)(b) talking on his cellphone with the device up to his ear. Upon seeing the police vehicle, § 87(2)(b) dropped the cellphone next to him and sped off down Eldert Lane. PO Franklin pulled him over and denied that he or any other officer drew their guns. He asked § 87(2)(b) for his license, registration and proof of insurance and told § 87(2)(b) he was pulled over for cellphone use. § 87(2)(b) immediately yelled, "You fucking liar! You dread! You didn't see me on my fucking cellphone." § 87(2)(b) refused to provide his documents and asked to speak to a supervisor. Lt. McKenzie, who was on the passenger side, walked over and asked § 87(2)(b) for his documents. § 87(2)(b) continued to scream and curse at PO Franklin and Lt. McKenzie and eventually provided his license. PO Franklin asked him to step out of the vehicle for safety purposes and § 87(2)(b) refused. PO Franklin opened the car door, pulled him out by the arm and placed him against the vehicle. § 87(2)(b) was handcuffed and PO Franklin did not take his wallet or cellphone out of his pocket because § 87(2)(b) had already provided his identification. He did not see where the cellphone was once the car was stopped. § 87(2)(b) did not ask Lt. McKenzie for his name or shield number and he did not refuse to provide it.

Lt. McKenzie's statement was consistent with PO Franklin that no officer drew their gun. He stated that PO Franklin patted down § 87(2)(b)'s waistband after he handcuffed him but did not enter any pockets or remove any items from his person. He also stated that § 87(2)(b) never asked him for his name or badge number and his nameplate and badge were visible at all times during the car stop.

§ 87(2)(g)

It is therefore recommended that **Allegation A, B and C be Unsubstantiated.**

Squad:

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date